

Anita Dhiman @ Anita Panikar vs Rita And Ors on 7 November, 2023

IN THE COURT OF SH. RAJESH MALIK, ADDITIONAL
DISTRICT JUDGE -06: CENTRAL DISTRICT,
TIS HAZARI COURTS, DELHI

RCA DJ 46/2019

IN THE MATTER OF:-

Anita Dhiman @ Anita Panikar,
W/o Late Sh. Jai Rajan Panikar,
R/o G-11/253, Madangir,
Delhi-110062

.....Appellant

VERSUS

1. Rita
2. Ms. Prerna
D/o Ms. Rita
3. Mr. Hardik
S/o Ms. Rita
4. Union of India
Through Secretary
Ministry of Defence
5. State of Delhi
6. C.G.0
Air Force Station
Palam, 3 Wing
Delhi Cantt., Delhi
7. C.G.0
Air Force Station
Palam, 3 Wing
Delhi Cantt., Delhi

.....Respondents

RCA DJ 426/19

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Other Details

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Date of Institution	: 27.04.2019
Date of Reserving Judgment	: 16.10.2023
Date of Judgment	: 07.11.2023

Decision

: Appeal Dismissed

JUDGMENT

1. The present appeal has been filed under Section 384 of the Indian Succession Act to set aside the order dated 02.03.2019 passed by Ld. ACJ-cum-ARC (Central District), Tis Hazari in Revocation Petition No.1/16 in the case titled as Anita Dhiman @ Anita Panikar vs. Rita & Ors.

MARRIAGE OF JAI RAJAN PANIKAR:-

2. The deceased Jai Rajan Panikar was the Air Force employee. He married with Anita on 09.11.1985. However, the dispute arose due to matrimonial discord between Jai Rajan Panikar and Anita. Resultantly, he filed a divorce petition against his wife namely Anita. However, the divorce petition was dismissed by the District Court. Having aggrieved by the decision of the District Court, he filed an appeal before the Hon'ble Delhi High Court. However, during the pendency of appeal, he died on 12.07.2006. After his death, a Succession Petition was filed by one Rita and her two minor children namely Baby Prerna and Master Hardik with regard to service dues such as death-cum-retirement gratuity, insurance, leave encashment, GPF, family pension etc. Rita claimed to be his wife and Baby Prerna and Master Hardik claimed to be his children.

Anita Dhiman @ Anita Panikar vs. Rita and Ors. Page No. 2 of 7 FATE OF SUCCESSION PETITION NO. 302/2008:-

3. As noted above, the Succession Petition was filed by Rita, Baby Prerna and Master Hardik against the Union of India, Air Force and Anita. Ld. Trial Court declined to grant the succession certificate in favour of Rita, however, baby Prerna and Master Hardik alongwith Anita were found to be eligible for grant of succession certificate in respect of the death-cum-retirement benefits to an extent of 1/3rd share each.

REVOCATION PETITION AGAINST THE SUCCESSION CERTIFICATE IN PETITION NO. 302/2008:-

4. Anita, being aggrieved by the grant of succession certificate in favour of baby Prerna and Master Hardik, filed the revocation petition mainly on the ground that no evidence was produced before the court to prove that Prerna was the daughter of Late Jai Rajan Panikar. However, Ld. Trial Court dismissed the revocation petition on the ground that there was no concealment on the part of Rita with regard to the legal representative of Late Jai Rajan Panikar, and no evidence was led by Anita to show that Baby Prerna and Master Hardik were not the children of Jai Rajan Panikar.

GROUND OF PRESENT APPEAL:-

- Ld. Trial Court did not consider the decision of Senior Civil Judge, Tis Hazari Courts in Civil Suit No. 97770/16/06 against Rita, Hardik and Prerna.

- Ld. Trial Court failed to appreciate that Prerna was not the daughter of the deceased.

- Ld. Trial Court relied upon Ex. CW-1/B (affidavit) which was never Anita Dhiman @ Anita Panikar vs. Rita and Ors. Page No. 3 of 7 given in evidence to any authority/department/court at any point of time.

- The authenticity and genuineness of Ex. CW-1/B was under serious doubt.

- Ld. Trial Court has wrongly relied upon the document i.e, Ex. PW-

3/6 (letter to Air Force by Jai Rajan Panikar) as the same was written in the year 2003, whereas the children were born on 17.10.1990 and 16.06.1999.

- Ld. Trial Court failed to appreciate that Air force had asked late Jai Rajan Panikar to clarify the details of his children and wife, but he failed to clarify the same and in absence of the same, succession certificate can not be issued in favour of children of Late Jai Rajan Panikar.

- Rita admitted in her evidence before the Trial Court that she got married with Jai Rajan Panikar on 02.01.1999, whereas Prerna born in the year 1990 and therefore, Prerna is not the child of Late Jai Rajan Panikar.

- PW-4 deposed falsely regarding the date of marriage of Rita and Late Jai Rajan Panikar as 02.01.1990.

- Ld. Trial Court has failed to consider that Section 16 of Hindu Marriage Act is not applicable to the present case as the marriage between Late Jai Rajan Panikar and Rita has not been proved by any evidence.

PRIMA-FACIE THE BEST TITLE:-

5. It is a settled preposition of law that while granting the succession certificate, the court of competent jurisdiction shall decide the succession petition in a summary manner in favour of a person Anita Dhiman @ Anita Panikar vs. Rita and Ors. Page No. 4 of 7 having prima-facie the best title. Rita along with her two children applied for succession certificate. As noted above, the court has to see the petition in a summary manner to find out whether Rita and her two minor children were having prima-facie the best title. The contestant of the succession petition was none other than Anita, who was the wedded wife of Late Jai Rajan Panikar. The court prima- facie found that Rita got married during the subsistence of earlier marriage with Anita and therefore, she could not be said to be legally wedded wife of Late Jai Rajan Panikar and accordingly, she was not found eligible to get her share, though Late Jai Rajan Panikar filed an affidavit before the Air Force, declaring Rita as his wife and Prerna and Hardik as his children.

6. The affidavit declaring his relationship with Rita, Prerna and Hardik was in the custody of Air Force. There is nothing on record for a valid assumption that the said affidavit was forged by the Air Force. Despite the said affidavit, the marriage of Rita does not attain legal status because marriage of Late Jai Rajan Panikar with Anita was in subsistence when Rita and Late Jai Rajan Panikar got married. Once, the marriage has no validity, it hardly matters whether it is proved or not. Further, the date of marriage of Rita with Late Jai Rajan Panikar is immaterial for the reason that the marriage was not found to be legally sustainable. Reading the record of the Ld. Trial Court as a whole, there is no confusion regarding the averment made by Rita that she got married with Jai Rajan Panikar on 02.01.1990. So, there is no contradiction regarding the date of marriage of Rita with Jai Rajan Panikar though the marriage was not legally sustainable.

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7. However, so far as children namely Prerna and Hardik are concerned, this affidavit is relevant and is a prima-facie proof of the fact that Prerna and Hardik were the children of Late Jai Rajan Panikar. To support this affidavit, there is another document filed by Late Jai Rajan Panikar before the Air Force and the same is a request letter to the Air Force authority to include the children name in the service documents. Late Jai Rajan Panikar wrote a letter to the Air Force, requesting the latter to add Prerna and Hardik as his daughter and son in his service documents. The birth certificate of Hardik was also filed with the said letter. In the birth certificate of Hardik, Jai Rajan Panikar and Rita have been shown as his father and mother respectively. Apparently, there is no birth certificate of daughter Prerna, but the applications for inclusion of children name in the service document as well as affidavit of Late Rajan Panikar are sufficient to make a prima-facie view that Prerna and Hardik were the children of Late Jai Rajan Panikar. The contention that the letter was written to the Air Force in 2003, whereas the child was born in 1990 and 1999, has no force as the delay in informing an employer regarding children does not discredit the information about the family members.

FINDINGS OF CIVIL COURTS IN SUIT NO. 97770/16/06 AND APPEAL RCA NO. 56/2018 WITH REGARD TO RITA, PRERNA AND HARDIK:-

8. Rita, Prenba and Hardik approached the Civil Court (Tis Hazari) for the relief of mandatory injunction with a prayer to direct the Air Force authorities to release them the service benefits. Ld. Civil Court (Tis Hazari) did not give any finding with regard to Prerna and Anita Dhiman @ Anita Panikar vs. Rita and Ors. Page No. 6 of 7 Hardik, but the status of marriage of Rita was discussed, and she was found to be not legally wedded wife of Late Jai Rajan Panikar. The judgment of Ld. civil court (Tis Hazari) was challenged by Rita before Ld. ADJ (Saket). However, nothing fruitful could be achieved and the status of the marriage of Rita with Jai Rajan Panikar could not be changed. It is reiterated here again that civil courts did not make any observation regarding the status of Prerna and Hardik being the daughter and son of Late Jai Rajan Panikar. In-fact, it was for the civil court to decide the status of Prerna and Hardik. However, in absence of any decision of the civil court regarding the status of Prerna and Harkik, the prima-facie view taken by Ld. ACJ on the basis of documents produced by the Air Force in the succession petition is valid and there is no grounds available to this court to interfere with the prima-facie best title view taken in succession petition as

well as in the revocation petition. Accordingly, there are no merits in the present appeal. Thus, the same is dismissed.

9. Let the copy of this judgment be sent to the Ld. Trial Court along with the Trial Court Record.

10. Appeal file be consigned to the Record Room as per rules after compliance with necessary legal formalities.

Announced in open Court Dated: 07.11.2023 (RAJESH MALIK) Addl. District Judge-06 (Central), Tis Hazari Courts, Delhi Anita Dhiman @ Anita Panikar vs. Rita and Ors. Page No. 7 of 7